

4 Power to revoke

[The Family Court Practice \(The Red Book\)](#) > [Part II Statutes](#) > [Children Act 1989](#) > [Schedule A1 Enforcement orders](#) > ***Part II Revocation, amendment or breach of enforcement order***

Part II

Revocation, amendment or breach of enforcement order

4 Power to revoke

- (1) This paragraph applies where a court has made an enforcement order in respect of a person's failure to comply with a provision of a child arrangements order and the enforcement order is in force.
- (2) The court may revoke the enforcement order if it appears to the court that –
 - (a) in all the circumstances no enforcement order should have been made,
 - (b) having regard to circumstances which have arisen since the enforcement order was made, it would be appropriate for the enforcement order to be revoked, or
 - (c) having regard to the person's satisfactory compliance with the contact order or any child arrangements order that has effect in its place, it would be appropriate for the enforcement order to be revoked.
- (3) The enforcement order may be revoked by the court under sub-paragraph (2) of its own motion or on an application by the person subject to the enforcement order.
- (4) In deciding whether to revoke the enforcement order under sub-paragraph (paragraph (2)(b)), the court is to take into account –
 - (a) the extent to which the person subject to the enforcement order has complied with it, and
 - (b) the likelihood that the person will comply with the child arrangements order or any contact order that has effect in its place in the absence of an enforcement order.
- (5) In deciding whether to revoke the enforcement order under sub-paragraph (2)(c), the court is to take into account the likelihood that the person will comply with the child arrangements order or any contact order that has effect in its place in the absence of an enforcement order.

[2.375[3]]

Amendments—[CFA 2014, s 12](#), Sch 2.

5 Amendment by reason of change of residence

[The Family Court Practice \(The Red Book\)](#) > [Part II Statutes](#) > [Children Act 1989](#) > [Schedule A1 Enforcement orders](#) > [Part II Revocation, amendment or breach of enforcement order](#)

- (1) This paragraph applies where a court has made an enforcement order in respect of a person's failure to comply with a provision of a child arrangements order and the enforcement order is in force.
- (2) If the court is satisfied that the person has changed, or proposes to change, his residence from the local justice area specified in the order to another local justice area, the court may amend the order by substituting the other area for the area specified.
- (3) The enforcement order may be amended by the court under sub-paragraph (2) of its own motion or on an application by the person subject to the enforcement order.

[2.375[4]]

Amendments—[CFA 2014, s 12](#), Sch 2.

6 Amendment of hours specified under unpaid work requirement

[The Family Court Practice \(The Red Book\)](#) > [Part II Statutes](#) > [Children Act 1989](#) > [Schedule A1 Enforcement orders](#) > [Part II Revocation, amendment or breach of enforcement order](#)

- (1) This paragraph applies where a court has made an enforcement order in respect of a person's failure to comply with a provision of a child arrangements order and the enforcement order is in force.
- (2) If it appears to the court that, having regard to circumstances that have arisen since the enforcement order was made, it would be appropriate to do so, the court may reduce the number of hours specified in the order (but not below the minimum specified in paragraph 3B(1)(b)(i)).
- (3) In amending the enforcement order under sub-paragraph (2), the court must be satisfied that the effect on the person of the enforcement order as proposed to be amended is no more than is required to secure his compliance with the contact order or any child arrangements order that has effect in its place.
- (4) The enforcement order may be amended by the court under sub-paragraph (2) of its own motion or on an application by the person subject to the enforcement order.

[2.375[5]]

Amendments—[CFA 2014, s 12](#), Sch 2; [Sentencing Act 2020, s 410](#), Sch 24, Pt 1, para 112(1), (3).

7 Amendment to extend unpaid work requirement

[The Family Court Practice \(The Red Book\)](#) > [Part II Statutes](#) > [Children Act 1989](#) > [Schedule A1 Enforcement orders](#) > [Part II Revocation, amendment or breach of enforcement order](#)

- (1) *This paragraph applies where a court has made an enforcement order in respect of a person's failure to comply with a provision of a child arrangements order and the enforcement order is in force.*
- (2) *If it appears to the court that, having regard to circumstances that have arisen since the enforcement order was made, it would be appropriate to do so, the court may, in relation to the order, extend the period of twelve months specified in paragraph 3A(1)(b).*
- (3) *The period may be extended by the court under sub-paragraph (2) of its own motion or on an application by the person subject to the enforcement order.*

[2.375[6]]

Amendments—[CFA 2014, s 12](#), Sch 2; [Sentencing Act 2020, s 410](#), [Sch 24, Pt 1, para 112\(1\), \(4\)](#). Words in italic repealed by the [Sentencing Act 2026, s 36\(2\)\(b\)](#); for effect see s 36(3). Date in force (for certain purposes): 22 January 2026.

8 Warning and report following breach

[The Family Court Practice \(The Red Book\)](#) > [Part II Statutes](#) > [Children Act 1989](#) > [Schedule A1 Enforcement orders](#) > [Part II Revocation, amendment or breach of enforcement order](#)

- (1) This paragraph applies where a court has made an enforcement order in respect of a person's failure to comply with a provision of a child arrangements order.
- (2) If the responsible officer is of the opinion that the person has failed without reasonable excuse to comply with the unpaid work requirement imposed by the enforcement order, the officer must give the person a warning under this paragraph unless –
 - (a) the person has within the previous twelve months been given a warning under this paragraph in relation to a failure to comply with the unpaid work requirement, or
 - (b) the responsible officer reports the failure to the appropriate person.
- (3) A warning under this paragraph must –
 - (a) describe the circumstances of the failure,
 - (b) state that the failure is unacceptable, and
 - (c) inform the person that, if within the next twelve months he again fails to comply with the unpaid work requirement, the warning and the subsequent failure will be reported to the appropriate person.
- (4) The responsible officer must, as soon as practicable after the warning has been given, record that fact.
- (5) If –
 - (a) the responsible officer has given a warning under this paragraph to a person subject to an enforcement order, and
 - (b) at any time within the twelve months beginning with the date on which the warning was given, the responsible officer is of the opinion that the person has since that date failed without reasonable excuse to comply with the unpaid work requirement imposed by the enforcement order,

the officer must report the failure to the appropriate person.

- (6) A report under sub-paragraph (5) must include a report of the warning given to the person subject to the enforcement order.
- (7) The appropriate person, in relation to an enforcement order, is the officer of the Service or the Welsh family proceedings officer who is required under section 11M to report on matters relating to the enforcement order.
- (8) 'Responsible officer', in relation to a person subject to an enforcement order, has the meaning given by paragraph 1.

[2.375[7]]

Amendments—[CFA 2014, s 12](#), Sch 2; [Sentencing Act 2020, s 410](#), [Sch 24, Pt 1, para 112\(1\), \(5\)](#).

9 Breach of an enforcement order

The Family Court Practice (The Red Book) > Part II Statutes > Children Act 1989 > Schedule A1 Enforcement orders > Part II Revocation, amendment or breach of enforcement order

- (1) This paragraph applies where a court has made an enforcement order ('the first order') in respect of a person's failure to comply with a provision of a child arrangements order.
- (2) If the court is satisfied beyond reasonable doubt that the person has failed to comply with the unpaid work requirement imposed by the first order, the court may –
 - (a) amend the first order so as to make the requirement more onerous, or
 - (b) make an enforcement order ('the second order') in relation to the person and (if the first order is still in force) provide for the second order to have effect either in addition to or in substitution for the first order.
- (3) But the court may not exercise its powers under sub-paragraph (2) if it is satisfied that the person had a reasonable excuse for failing to comply with the unpaid work requirement imposed by the first order.
- (4) The burden of proof as to the matter mentioned in sub-paragraph (3) lies on the person claiming to have had a reasonable excuse, and the standard of proof is the balance of probabilities.
- (5) The court may exercise its powers under sub-paragraph (2) in relation to the first order only on the application of a person who would be able to apply under section 11J for an enforcement order if the failure to comply with the first order were a failure to comply with a provision of the child arrangements order to which the first order relates.
- (6) Where the person proposing to apply to the court is the child with respect to whom the child arrangements order was made, subsections (6) and (7) of section 11J have effect in relation to the application as they have effect in relation to an application for an enforcement order.
- (7) An application to the court to exercise its powers under sub-paragraph (2) may only be made while the first order is in force.
- (8) The court may not exercise its powers under sub-paragraph (2) in respect of a failure by the person to comply with the unpaid work requirement imposed by the first order unless it is satisfied that before the failure occurred the person had been given (in accordance with rules of court) a copy of, or otherwise informed of the terms of, a notice under section 11N relating to the first order.
- (9) In dealing with the person under sub-paragraph (2)(a), the court may –
 - (a) increase the number of hours specified in the first order (but not above the maximum specified in paragraph 3B(1)(b)(ii));
 - (b) *in relation to the order, extend the period of twelve months specified in paragraph 3A(1)(b).*
- (10) In exercising its powers under sub-paragraph (2), the court must be satisfied that, taking into account the extent to which the person has complied with the unpaid work requirement imposed by the first order, the effect on the person of the proposed exercise of those powers –
 - (a) is no more than is required to secure his compliance with the contact order or any child arrangements order that has effect in its place, and

9 Breach of an enforcement order

- (b) is no more than is proportionate to the seriousness of his failures to comply with the provisions of the child arrangements order and with the first order.
- (11) Where the court exercises its powers under sub-paragraph (2) by making an enforcement order in relation to a person who has failed to comply with another enforcement order –
- (a) sections 11K(4), 11L(2) to (7), 11M and 11N have effect as regards the making of the order in relation to the person as they have effect as regards the making of an enforcement order in relation to a person who has failed to comply with a provision of a child arrangements order;
- (b) this Part of this Schedule has effect in relation to the order so made as if it were an enforcement order made in respect of the failure for which the other order was made.
- (12) Sub-paragraph (2) is without prejudice to [section 63\(3\)](#) of the Magistrates' Courts Act 1980 as it applies in relation to enforcement orders.

[2.375[8]]

Amendments—[CFA 2014, s 12](#), Sch 2; [Sentencing Act 2020, s 410](#), [Sch 24, Pt 1, para 112\(1\), \(6\)\(a\)–\(b\)](#). Words in italic repealed by the [Sentencing Act 2026, s 36\(2\)\(c\)](#); for effect see s 36(3). Date in force (for certain purposes): 22 January 2026.

10 Provision relating to amendment of enforcement orders

[The Family Court Practice \(The Red Book\)](#) > [Part II Statutes](#) > [Children Act 1989](#) > [Schedule A1 Enforcement orders](#) > [Part II Revocation, amendment or breach of enforcement order](#)

Sections 11L(2) to (7) and 11M have effect in relation to the making of an order under paragraph 6(2), 7(2) or 9(2)(a) amending an enforcement order as they have effect in relation to the making of an enforcement order; and references in sections 11L(2) to (7) and 11M to an enforcement order are to be read accordingly.

[2.375[9]]

Amendments—Schedule inserted by [CAA 2006, s 4\(2\)](#), [Sch 1](#).